

		(FAC¶¶127-129.) This is insufficient. The Demurrer is SUSTAINED with 20 days leave to amend as to the 12th cause of action. The request for judicial notice is denied. None of the exhibits is a proper matter for judicial notice. Defendants to give notice.
109	Lopez v. Flores, 2024-01435693	MOTION FOR JUDGMENT ON THE PLEADINGS – GRANTED WITH 10 DAYS LEAVE TO AMEND Defendant/Cross-Complainant Mayra Isabel Flores Flores’ (“Flores”) Motion for Judgment on the Pleadings as to her Cross-Complaint is GRANTED with leave to amend. Although Plaintiff/Cross-Defendant Jocelynn Denise Lopez’s (“Lopez”) did not file opposition to the motion, her counsel submitted a late declaration explaining they intended to oppose the motion and seek leave to amend the answer to the cross-complaint. The failure to oppose the motion is an admission that the motion for judgment on the pleadings has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) The court will, however, permit Lopez to file the first amended answer. The court rejects Flores’s arguments that the answer is incapable of amendment because the

		general denial effectively admitted all allegations of the verified cross-complaint, or because Lopez litigated the case for over a year under the unverified answer. The motion for judgment on the pleadings is GRANTED. The amended verified answer attached to counsel's declaration (ROA # 85) shall be filed within 10 days. Moving Party to give notice.
110	Luo v. Lu, 2025-01522336	DEMURRER TO COMPLAINT - OVERRULED as to the first and second causes of action and SUSTAINED with leave to amend as to the third and fourth causes of action. MOTION TO STRIKE – DENIED Plaintiff Fanzhou Luo alleged Defendant Chienyu Lu fraudulently transferred real property to Defendants Quan Nguyen and Johanne Tsui (together, "Moving Defendants") to protect that property from a judgment Plaintiff obtained against Chienyu Lu in a separate action. Moving Defendants demur to all causes of action alleged against them. <u>First and Second Causes of Action for Intentional and Constructive Fraudulent Transfer</u> (Civil Code §3439.04(a)(1) and (2)) "Under the U[V]TA, a transfer can be invalid either because of actual fraud (Civ. Code, § 3439.04, subd. (a)) or constructive fraud (id., §§ 3439.04, subd. (b), 3439.05)." (Potter v. Alliance United Ins. Co. (2019) 37 Cal.App.5th 894, 904 (citing Mejia v. Reed (2003) 31 Cal.4th 657, 661).) A transfer is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made, if the debtor made the transfer (1) with the actual intent to hinder, delay, or defraud any creditor, or (2) without receiving reasonably equivalent value and as a result the debtor became (or believed/intended he would become) insolvent. (Id., citing Civ. Code § 3439.04(a)(1) & (2).)